

A MEASURE

PASSED BY

THE NATIONAL ASSEMBLY OF THE CHURCH
OF ENGLAND

To amend the Law with regard to Ecclesiastical
Dilapidations, and for other purposes.
[14th July 1924.]

PRELIMINARY.

1. This Measure may be cited as the Ecclesiastical Short title.
Dilapidations Measure, 1923.

2. This Measure shall not extend to Scotland or Extent,
Ireland or to such portions of Wales and Monmouthshire
as are subject to the provisions of the Welsh Church
Act, 1914.

3. In this Measure—

Definitions.

The term "Central Authority" shall mean Queen
Anne's Bounty;

The term "the Bishop" shall mean, as the
context may require, the Bishop of the diocese
concerned or of the diocese within which the
benefice is situated with regard to which the
provisions of this Measure are sought to be
applied, and in relation to the diocese of an
Archbishop shall mean the Archbishop;

The term "the Archdeacon" shall mean the
Archdeacon of the archdeaconry within which
the benefice is situated with regard to which
the provisions of this Measure are sought to be
applied;

The term "the Rural Dean" shall mean the
Rural Dean of the rural deanery within which
the benefice is situated with regard to which
the provisions of this Measure are sought to be
applied;

The term "Diocesan Dilapidations Board" (here-
inafter sometimes called "the Board") shall

mean the Diocesan Dilapidations Board constituted under the provisions of this Measure, and where referred to in connection with a particular benefice shall mean the Diocesan Dilapidations Board for the area in which such benefice is situated;

The term "Diocesan Conference" shall mean the Diocesan Conference of a diocese constituted as provided in the Regulation passed by the National Assembly of the Church of England, and known as the Diocesan Conferences Regulation, 1922;

The term "Diocesan Authority" shall mean the Diocesan Board of Finance, or any body whether now existing or to be set up hereafter, appointed by the Diocesan Conference under the provisions of the Parochial Church Councils (Powers) Measure, 1921, to act as Trustees of diocesan trust property;

The term "Surveyor" shall mean the Surveyor acting under this Measure for the area concerned;

The term "benefice" shall include all rectories with cure of souls, vicarages, perpetual curacies, separate districts for spiritual purposes formed under the New Parishes Act, 1843, endowed public chapels and parochial chapelries, and chapelries or districts belonging or reputed to belong, or annexed or reputed to be annexed, to any church or chapel;

The term "net income of the benefice" shall mean the annual value of the benefice estimated as provided in 13 and 14 Vict., c. 98, section four;

The term "Ordinary Assessment" shall mean any order by the Central Authority under section 24 of this Measure, whether varied under section 27 or not, fixing an annual sum for a period of five years;

The term "Long Assessment" shall mean any order by the Central Authority under section 26 of this Measure, whether varied under section 27 or not, fixing an annual sum for a period of more than five years;

The term "Charging Assessment" shall mean any order by the Central Authority under section 38 of this Measure charging the revenues of a benefice with the repayment of an advance made by the Central Authority under this Measure;

The term "quinquennial period" in respect of any benefice shall mean in the case of the first quinquennial period the period from the date of the first Ordinary Assessment affecting that benefice to the due date of the fifth annual sum payable under that assessment, and in case of any subsequent quinquennial period the period of five years from the due date of the last annual sum payable under the last preceding Ordinary Assessment;

The term "patron" shall have the meaning assigned to it by the Incumbents' Resignation Act, 1871;

The term "sequestrator" shall mean the person or persons who shall for the time being be appointed for the sequestration of the income of a benefice whether during a vacancy or otherwise;

The term "preceding Acts" shall mean the Ecclesiastical Dilapidations Acts, 1871 and 1872.

4.—(1) The Interpretation Act, 1889, shall apply to the interpretation of this Measure in like manner as it applies to the interpretation of an Act of Parliament, and as if this Measure were an Act of Parliament. Interpreta-
tion.

(2) The provisions of this Measure respecting buildings belonging to a benefice shall apply to all such houses of residence, glebe buildings, walls, fences, and other buildings and things as the incumbent of the benefice is by law or custom bound to maintain in repair, and the drainage thereof and the supply of water thereto, but shall not apply to churches or chancels save as hereinafter expressly provided.

(3) For the purposes of this Measure all lands and buildings belonging to a benefice shall be deemed to be within the diocese of the Bishop under whose jurisdiction the benefice is.

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Saving of
rights of
certain
incumbents.

5. Nothing contained in this Measure shall be construed or operate to deprive an incumbent or his estate of any protection which at the passing of this Measure he may have in respect of buildings specified in a certificate registered under sections forty-six or fifty of the Ecclesiastical Dilapidations Act, 1871.

Notices, &c.

6.—(1) Whenever this Measure requires any notice, letter, report or other document to be sent, delivered, or otherwise notified or given to or left with any person, the requirement of the Measure shall be deemed to have been complied with by service by post addressed to that person at his last known place of address.

(2) In regard to the patrons mentioned in the enactments set out in the Third Schedule to this Measure, the actions of or towards such patrons required by this Measure shall be performed so far as may be in the manner provided by those enactments.

(3) Where for the purposes of this Measure any act is authorised or required to be done or any notice is required to be given by or to any patron such act and notice may in the case of any right of patronage vested in or in trust for inhabitants, ratepayers, freeholders or other persons forming a numerous class, be done and given by and to the Parochial Church Council of the parish concerned.

Exercise of
powers of
Bishop,
Board, and
Central
Authority.

7.—(1) The Bishop of a diocese may delegate to the Archdeacon the exercise of any of the powers or duties assigned to him by this Measure other than the issuing of sequestrations.

(2) Where a Bishop is disabled from exercising in person the functions of his office, the powers or duties assigned to him by this Measure shall be exercised by the person lawfully empowered to exercise his general jurisdiction in the diocese.

(3) During the vacancy of a see the powers or duties which may be exercised under this Measure by a Bishop may be exercised by the guardian of the spiritualities of the diocese.

(4) The Diocesan Dilapidations Board may delegate to a Committee of its number the exercise of any of the powers or duties assigned to it by this Measure.

(5) The Central Authority may delegate to a Committee of their number or to their Secretary and Treasurer any of the powers or duties assigned to them by this Measure.

8.—(1) Any consent required by this Measure to be given in writing by a Diocesan Dilapidations Board to advances by the Central Authority may, if there shall be no such Board, be given by the Bishop. Consents.

(2) Any consent required by this Measure to be given in writing by a Diocesan Dilapidations Board or by the Central Authority shall be sufficiently evidenced by the signature of such consent by their respective Secretaries.

(3) Any consent required by this Measure from the patron or incumbent of a benefice shall be deemed to be given if he shall not signify his dissent in writing within one calendar month after notice has been served on him that his consent will be deemed to be given if he does not so signify his dissent.

(4) Every consent by or authority from a Bishop under this Measure (or from any person by whom his powers are lawfully exercised) shall be in writing under his hand.

DIOCESAN DILAPIDATIONS BOARD.

9.—(1) As soon as possible after the passing of this Measure the Diocesan Conference of each diocese shall frame a scheme for the constitution of a Diocesan Dilapidations Board for the whole diocese, or, if the Conference resolve for the purposes of this Measure to divide the diocese into parts, then for the constitution of a Board for each part. Diocesan Dilapidations Board.

(2) The scheme shall determine the number of the members of each Board, and the method of choosing them, and all other matters necessary for the proper constitution of each Board.

(3) Provided always that the scheme may constitute the Board of Finance of the diocese, or any Committee of the Conference, or any other body recognised by the Bishop as performing diocesan functions, to be a Board under this section.

(4) The Board shall present an annual report and accounts to the Diocesan Conference, and shall, subject to the provisions of this Measure, conform to any directions that the Conference may give.

(5) The scheme shall enable and require the Board, or some body or person appointed thereby, to collect, receive and hold money for the purposes of this Measure.

(6) Any scheme passed at a meeting of the Conference shall be signed by the Chairman of that meeting and shall come into operation as from the date of that signature.

(7) The Conference may at any time vary a scheme framed under this section, or may annul it, and substitute for it a new scheme.

Joint
Diocesan
Dilapida-
tions Board.

10.—(1) The Diocesan Conferences of two or more contiguous dioceses may form a joint Board for such dioceses, or for any parts thereof, and frame a scheme for that purpose.

(2) A scheme under this section may constitute any body mentioned in subsection (3) of the preceding section of this Measure, or any combination of such bodies, to be the joint Board for the purposes of this Measure.

(3) Where a joint Board has been constituted, all powers, duties and liabilities of the Bishop under this Measure shall be vested in the Bishop of the diocese in which the benefice concerned is situated.

(4) A scheme under this section may be annulled so far as it relates to any particular area by a resolution of the Conference of the diocese in which such area is situated, and in that case provision shall thereupon be made by a scheme under this or the preceding section for the constitution of a Board for such area, or for the assignment of the area to an existing Board; and a scheme so made may vary any existing scheme or may annul it and substitute new provisions in lieu thereof.

Provision if
no Diocesan
Dilapida-
tions Board.

11. If at any time after the expiration of six calendar months from the passing of this Measure any area shall be without a Board constituted under this Measure then the powers and duties of the Board shall, except as in this Measure otherwise expressly provided, be

exercised and performed by the Central Authority until such a Board shall be duly constituted and able to act.

SURVEYORS.

12.—(1) The Board when constituted shall appoint **Surveyors** such fit persons as Surveyors as may be required for the purposes of this Measure. Each appointment shall be for a term not exceeding five years, and may be for the whole or such part of the diocese or other area administered by the Board as the Board shall determine and as shall be stated in the appointment. If more than one Surveyor be appointed for any area, the Board may, if it thinks fit, from time to time determine which of such Surveyors shall ordinarily act in respect to each benefice in the area.

(2) Any Surveyor whose appointment shall lapse by effluxion of time or otherwise than by removal from office as hereinafter provided shall be entitled to act for the purposes of this Measure until a successor shall be appointed.

(3) Every Surveyor shall be under the control and direction of the Board by which he was appointed.

(4) Any complaint against the Surveyor for neglect or breach of duty or misconduct shall be made to the Board, who, after giving him opportunity of showing cause to the contrary, shall have power to remove him from his office.

(5) No Surveyor appointed under the provisions of this Measure shall have any claim to compensation on account of any such compulsory removal as aforesaid or of any repeal or alteration of this Measure.

(6) On a vacancy occurring in the office of Surveyor, a fit person may be appointed by the Board as soon as possible after the occurrence of the vacancy.

(7) A Surveyor shall be paid according to a scale of fees or by salary fixed by the Board; and the scale of fees or salary may from time to time be revised by the Board but not so as to affect the remuneration of a Surveyor in respect to any work then already done or in course of being done by him.

13.—(1) All Surveyors appointed under the preceding Acts shall remain Surveyors for the purposes of **Surveyors under the preceding**

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Acts and
this
Measure.

this Measure pending the appointment of Surveyors under its provisions, and shall be paid according to the rate of charges in force under the preceding Acts at the passing of this Measure: Provided that where a Surveyor appointed under the preceding Acts shall not be appointed under this Measure but is nevertheless engaged at the date of the appointment of the new Surveyor in an inspection of or a report on buildings belonging to a benefice, the Surveyor so engaged shall be at liberty to complete the inspection and report for the purposes of this Measure, and in that case shall be remunerated at the rate of charges in force under the preceding Acts.

(2) When a Surveyor shall have vacated his office after he has made an inspection but before he has made his report, everything done by such Surveyor in respect to the inspection shall be deemed to have been done by the Surveyor appointed in his place.

(3) In any area where there shall be no Surveyor having authority under the preceding Acts, any duties remaining to be performed by a Surveyor in that area under those Acts shall be performed by the Surveyor appointed under the provisions of this Measure.

Surveyor
not to be
interested
in con-
tracts, &c.

14. It shall not be lawful for the Surveyor to be beneficially interested directly or indirectly, by himself or by any partner or otherwise, in any work or contract to be executed or entered into by any person or persons (except any public company of which he may happen to be a member or shareholder, but not manager or director), under the provisions of this Measure: Provided that nothing herein contained shall prevent the Surveyor being employed and paid by the incumbent either as architect or otherwise to supervise the execution of the works.

Power of
inspection
and
execution
of works.

15.—(1) It shall be lawful for any Surveyor employed under this Measure, and for his servants and workmen, and for any person authorised by or on behalf of the Board for the purposes of this Measure, at all reasonable hours during the daytime, from time to time after due notice to the incumbent (if any), to enter into the buildings belonging to any benefice and to inspect and examine the same, and also any works in progress under this Measure.

(2) Where by reason of the refusal or neglect of the person responsible for the dilapidations any repairs are required under this Measure to be executed or buildings to be reinstated, it shall be lawful, after due notice, for all persons authorised by the Surveyor to enter into the buildings belonging to such benefice and to execute the works so required to be executed.

16. The Central Authority may from time to time draw up suggestions for the guidance of the Surveyors as the Central Authority may think desirable for the purposes of this Measure, and shall communicate copies of such suggestions to the Boards.

Advisory
Powers of
Central
Authority.

SURVEY.

17.—(1) As soon as a Diocesan Dilapidations Board shall have been constituted, the Board shall cause first inspections to be made for the purposes of this Measure of all the buildings of each benefice in the diocese or area for which it has been constituted.

Inspection
of benefices.

(2) Such first inspections shall be made within a period of seven years from the passing of this Measure in such order, in respect to the benefices in its area, as the Board may in its discretion determine, and in so determining the Board shall have due regard to the dates of inspections made and of certificates (if any) registered under the preceding Acts: Provided that upon any benefice becoming vacant or being placed under sequestration, the buildings belonging to such benefice, in respect of which no first inspection shall have been made, shall be inspected forthwith.

(3) Save in the case of an inspection on vacancy or sequestration no first inspection shall be made of any buildings belonging to a benefice without the consent of the incumbent, if and so long as the incumbent is protected by a certificate registered before the passing of this Measure under sections forty-six or fifty of the Ecclesiastical Dilapidations Act, 1871.

(4) Any new buildings erected or acquired for any benefice after the passing of this Measure, concerning which buildings no first inspection shall have been made, shall be inspected for the purposes of this Measure as soon as may be after such new buildings shall have been erected or acquired.

(5) On the expiration of every quinquennial period the Board shall, as soon as it conveniently can, and within six months from such expiration, direct another inspection to be made of the buildings of the benefice for the purposes of this Measure.

Reports.

18.—(1) On each inspection of the buildings of a benefice made under section 17 of this Measure the Surveyor shall make a report to the Board based on the obligation on the person lawfully bound to keep or have kept such buildings in good and substantial repair, and stating—

- (i) whether any and, if so, what repairs are needed, specifying the same in detail and distinguishing between such as should, in his opinion, be treated—
 - (a) as ordinary repairs, and
 - (b) as structural repairs and in respect to structural repairs between those which, in his opinion, do not properly admit of delay and those which do admit of delay;
- (ii) the estimated cost of all such repairs respectively;
- (iii) except in respect to dilapidations caused by the deliberate action or gross neglect of an incumbent, within what time not exceeding twelve months—
 - (a) ordinary repairs, and
 - (b) such structural repairs as either through their connection with ordinary repairs or otherwise do not, in his opinion, properly admit of delay (hereinafter called “immediate structural repairs”),
should be carried out, and within what time,
 - (c) the remaining structural repairs (if any),
should be carried out;
- (iv) what sum will, in his opinion and upon the assumption that the ordinary repairs and immediate structural repairs then needed will be duly carried out, be required to meet the probable cost of—
 - (a) ordinary repairs to such buildings during the five years immediately succeeding the date of his report,

(b) any structural repairs mentioned in sub-section (iii) (c) of this section as not being immediate structural repairs;

(v) what sum, in his opinion, will be adequate to reinstate each of such buildings in the event of its being destroyed by fire;

(vi) the reasons for the classification as structural repairs of any repairs so described.

(2) The Surveyor shall forthwith send a copy of such report to—

(i) the incumbent of the benefice; and

(ii) in case of the sequestration of a benefice, to the sequestrator; and

(iii) in the case of a first inspection, to any previous incumbent of the benefice not protected under section five of this Measure, or his executors or administrators.

(3) The copy of each report shall be accompanied by copies of section 20 and sub-section (1) of section 21 of this Measure and a notice addressed to the person to whom a copy of this report is sent that he may, if he so desires, send to the Board within fourteen days a tender for the execution of the work or any part of it.

(4) The Surveyor shall certify to the Board when and to whom and in what manner such copies and notices shall have been sent.

19.—(1) If a Surveyor shall report or the Board shall be of opinion that any dilapidations have been caused by the deliberate action or gross neglect of an incumbent (in this Measure called “wilful dilapidations”), the Surveyor shall separately state the cost of repairing forthwith such dilapidations, and sections 20 and 21 of this Measure shall thereupon apply. Neglect of incumbent.

(2) If a report by a Surveyor relating to wilful dilapidations shall be confirmed by the Board, with or without variation in regard to cost, the Central Authority shall have power to order that the cost of repairing such dilapidations as determined by the Board shall be paid without delay by such incumbent or by his executors or administrators, and the sum due in payment shall be a debt due to the Central Authority from such incumbent

or his estate as from the date of such order and shall be recoverable at law, and moneys received or recovered in payment of such debt shall be paid to the Ordinary or Structural Repair Accounts of the benefice, as the case may be.

Objections.

20.—(1) Within one month from the sending of a copy of the report of the Surveyor under this Measure to the person sought to be made responsible for dilapidations in accordance with the provisions of this Measure, whether for the execution of the repairs or for any payment in respect of them, such person may object to the report in writing to the Board on any grounds of fact or law.

(2) Any person so objecting shall pay to the Board such a sum, if any, and not exceeding five pounds, as the Board shall decide to be necessary to defray the cost of enquiry into the grounds of objection; and unless such sum be paid, no objection shall be deemed to have been made for the purpose of this Measure.

(3) Upon receiving any objection under this section the Board shall investigate the grounds of it, and may for that purpose require the attendance of the incumbent and of the Surveyor concerned, and may make by any members of the Board such inspections as the Board may think necessary, and may invite the Archdeacon in like manner to make inspection on its behalf and may obtain such professional or other advice as it may require.

(4) If the Board finds after investigation that an objection under this section is well founded, it shall repay to the person objecting the sum required to be paid by him or such part thereof as in the circumstances may seem to be reasonable.

DILAPIDATIONS ORDER.

Order.

21.—(1) If no objection be made, then on the expiration of one month from the sending of the copy of a report as aforesaid, or if objection be made, then so soon as the Board shall have determined upon every such objection, the Board shall make an order confirming the report of the Surveyor without variation or with such variation as the Board may in its discretion decide.

(2) The order of the Board so made shall state separately the estimated cost of the ordinary repairs and

the estimated cost of the immediate structural repairs and the person or persons liable for such repairs respectively, and in the case of a first inspection shall require payment of such estimated costs from any person or persons from whom such payment is due.

(3) When the buildings of a benefice protected by a certificate under section forty-six or fifty of the Ecclesiastical Dilapidations Act, 1871, shall be inspected on the occasion of a vacancy or a sequestration, the Board may include as part of the estimated cost of the ordinary repairs which will be required in the next five years the estimated cost of the repairs (whether ordinary repairs or immediate structural repairs) necessary at the time of the inspection, deducting from such estimated cost whatever sum (if any) may have been provided by a grant under sections 41 or 44 of this Measure or by a loan by the Central Authority under section 35 of this Measure or by any other contribution towards defraying such cost.

(4) The order of the Board may also, if it thinks fit, with the consent of the person responsible for the execution of the repairs of a building to which the order relates, and of the patron, direct the alteration or reconstruction of such building.

(5) The Board at any later time may make a further order—

- (i) directing the execution of any ordinary or structural repairs the execution of which may have been postponed by the terms of a previous order; or
- (ii) varying the terms of a previous order; or
- (iii) extending the time allowed for the execution of any works :

Provided that if such further order shall impose on any person new or increased responsibility for the execution of any works or for the payment of any money, notice of the order shall be sent to such person one calendar month before the order is made, and the provisions of section 20 of this Measure and of this section in regard to the making and consideration of objections shall apply.

(6) A copy of any order under this section shall forthwith be sent to every person from whom payment is

required or who is responsible for the execution of repairs under such order and to the Central Authority.

Payment by
incumbent.

22.—(1) When under section 17 of this Measure there is a first inspection of the buildings belonging to a benefice, if it be on the occasion of a vacancy in the benefice and the late incumbent is not protected by a certificate, then the late incumbent or his executors or administrators, and if it be not on the occasion of a vacancy, then the incumbent (or in the case of a sequestration, the sequestrator) shall pay to the Central Authority the sum required to be paid in the order made under section 21 of this Measure in respect to the cost of ordinary repairs and immediate structural repairs to the buildings of the benefice estimated in accordance with section 18 of this Measure.

(2) The sum shall be due to be paid as from the date of the order and shall be a debt due to the Central Authority from the person responsible or his estate, and shall be recoverable as such at law.

(3) In the case of a benefice under sequestration the sum required to be paid by the order of the Board shall be a charge upon the moneys from time to time received by the sequestrator in respect of the net profits with such priority in respect to other charges as is in this Measure prescribed.

(4) So long as the sequestration of a benefice shall remain in force, the sequestrator, after payment of the stipends referred to in section 38 of this Measure, shall pay what remains of the profits of the benefice to the Central Authority until the whole sum stated in the order shall have been paid.

(5) Upon the cesser of a sequestration before such sum is fully paid, the balance thereof shall be a debt due and recoverable at law from the incumbent of the benefice or his executors or administrators as from the date of the order of the Board under section 21 of this Measure.

(6) All moneys paid to the Central Authority in accordance with this section shall be placed to the credit of the Ordinary or Structural Repair Account of the benefice as the case may require.

(7) An incumbent upon receiving an order under section 21 of this Measure may represent to the Bishop

and to the Board that the buildings belonging to his benefice are in good repair and that he has before the passing of this Measure made adequate provision for meeting the cost of the dilapidations when he shall vacate the benefice by death or otherwise; and if the Bishop and the Board shall be satisfied that this representation is true and that adequate provision has been made as represented, and that it would be inequitable to require such incumbent to make further payment in addition to such provision, the Bishop may, with the consent of the Board, suspend until the next vacancy the operation of the order and of the consequent proceedings under this section and section 31 of this Measure.

23.—(1) The incumbent of a benefice not under sequestration, after receiving an order made under section 21 of this Measure in pursuance of the first inspection of the benefice after the passing of this Measure, may not later than three months before the expiration of the time specified in the order, or extended by a subsequent order, represent to the Bishop and the Board that he is unable to pay the whole of the sum due from him under the order after taking into account any contribution which may have been made towards payment from other sources. Inability of incumbent to pay.

(2) Upon such representation by an incumbent that he is unable to pay the sum due from him under an order as aforesaid, the Bishop may in his discretion, with the consent of the Board, suspend for such time as the Bishop shall think fit the operation of the order and of the consequent proceedings under sections 22 and 31 of this Measure.

(3) If the benefice have a net income (as in this Measure defined) of not less than £250 a year, the Bishop, upon such representation as aforesaid by the incumbent and after consultation with the Board, may in his discretion authorise the Central Authority to lend so much of the sum due from the incumbent as the Bishop may think fit upon the security of the revenues of the benefice.

(4) Upon the receipt of such authorisation the Central Authority may pay the sum specified by the Bishop to the Ordinary or Structural Repair Account of the benefice

as the case may require and may make a Charging Assessment (as hereinafter provided) in respect of such sum and of the interest accruing upon it.

ASSESSMENT, PAYMENTS AND EXECUTION OF
WORKS.

Ordinary
Assess-
ments.

24.—(1) As soon as may be after receiving a copy of the order of the Board under section 21 of this Measure the Central Authority shall make an Ordinary Assessment fixing for the next quinquennial period an annual payment to be made on account of the buildings to which the order of the Board relates.

(2) The annual payment to be fixed by such Ordinary Assessment shall consist of—

(i) a sum (in this Measure called “the Repair Rate”) sufficient in the opinion of the Central Authority to meet the estimated cost of the repairs required by the order of the Board made under section 21 of this Measure, except

(a) repairs of which the cost is spread over more than five years under section 26 of this Measure, and

(b) repairs required under section 19 of this Measure in respect to wilful dilapidations, and

(c) repairs the cost of which is required by the order of the Board to be paid in consequence of a first inspection under section 17 of this Measure or is otherwise provided for;

(ii) a further sum (in this Measure called “the Insurance Rate”) in respect to the insurance premium necessary to provide the capital sum fixed by the order of the Board under section 21 of this Measure in pursuance of the report of the Surveyor under section 18 of this Measure as being adequate to reinstate the buildings if destroyed by fire;

(iii) such further sum (if any) (in this Measure called “the Administration Rate”) as the Central Authority shall determine to be the necessary and proper contribution from the benefice towards the administrative expenses of

the Central Authority and of the Board (including salaries or fees of Surveyors);

Provided always that—

(a) the portion of the Administration Rate representing the administrative expenses of the Central Authority shall not exceed one per cent. of the Repair Rate, and the balance (if any) of such last-mentioned administrative expenses shall be paid by the Central Authority out of their general funds, and

(b) the portion (if any) of the Administration Rate representing the expenses of the Board (including salaries or fees of Surveyors), shall not exceed ten per cent. of the Repair Rate, and such portion of the Administration Rate shall be paid by the Central Authority to the Board;

(c) if the whole sum so payable towards the administrative expenses of the Central Authority or the Board or any part thereof shall be provided for to the satisfaction of the Central Authority by a Parochial Church Council, or by the Board or by any other person, then the amount of the Ordinary Assessment fixed by the Central Authority may be diminished accordingly.

(3) The Central Authority shall send a copy of any assessment made under this section to the incumbent and sequestrator, if any, of the benefice concerned and to the Board.

25.—(1) The first annual payment required by the first Ordinary Assessment made in respect to buildings belonging to a benefice shall be due from the incumbent or sequestrator of the benefice to the Central Authority at the expiration of twelve months from the date of such assessment: Provided that the Central Authority may, if they think fit, substitute for twelve months any period not less than nine months nor more than fifteen months from the date of such assessment, and in that case payment shall be due at the expiration of such substituted period.

Payments
under an
Ordinary
Assess-
ment.

(2) Subsequent annual payments required by the first Ordinary Assessment shall be due from the incumbent or sequestrator to the Central Authority at equal intervals of twelve months beginning from the date fixed for the first payment in accordance with the preceding subsection and continuing for four years from such date until the end of the first quinquennial period.

(3) Annual payments fixed by any subsequent Ordinary Assessment shall be in like manner due to the Central Authority at equal intervals of twelve months for the succeeding period of five years; and the first payment required by any such subsequent Ordinary Assessment shall become due at the expiration of twelve months from the date at which the last payment required by the next preceding assessment became due: Provided that the Central Authority may, if they think fit, vary the date on which a first payment under a subsequent Ordinary Assessment shall become due in the same manner as is prescribed in the first subsection of this section in respect to the first payment required by the first Ordinary Assessment.

(4) Every payment required by an Ordinary Assessment shall be a charge on the revenues of the benefice having such priority in respect to other charges as is in this Measure prescribed, and shall be recoverable by the Central Authority in the same manner and with the same powers and provisions in all respects as if it were a sum repayable in respect of moneys advanced under 17 George III., c. 53, or any Act amending the same. on the security of the revenues of the benefice.

(5) When a benefice in respect to which an Ordinary or Long Assessment has been made shall become vacant the Central Authority shall apportion to the outgoing incumbent or his executors or administrators so much of any sum that may be payable under any such assessment made as may in their opinion be just, and the amount so apportioned shall be a debt due to the Central Authority from such outgoing incumbent or his executors or administrators and recoverable at law.

(6) If the Central Authority are unable to recover such debt they may advance the money due on the security of the revenues of the benefice, and may make a charging assessment in respect of it as provided under section 38 of this Measure.

26.—(1) When any repairs are included in the report of the Surveyor as structural repairs under section 18 (1) (i) (b) of this Measure, not being repairs of which the cost has been otherwise provided for, and the Board shall be of opinion that the cost of them should be spread over a period longer than five years, the Board shall so inform the Central Authority, and the Central Authority shall thereupon make an assessment (in this Measure called a "Long Assessment") similar to an Ordinary Assessment under section 24 of this Measure except that the payments required shall be spread over such a period longer than five years as the Board shall think reasonable : Long Assessment.

Provided that in the case of a report made on a first inspection, under section 17 of this Measure, no Long Assessment shall be made in respect to those structural repairs which are included in section 18 (1) (i) (b) as immediate structural repairs which do not admit of delay.

The annual payments required by a Long Assessment shall be a charge on the revenues of the benefice having such priority in respect to other charges as is in this Measure prescribed, and the provisions of section 25 in regard to an Ordinary Assessment and to the powers of the Central Authority shall apply with the necessary modifications and so far as applicable as though a Long Assessment were substituted for an Ordinary Assessment in that section.

(2) It shall be lawful for the Central Authority, in respect to any benefice which is eligible to receive grants from them under their charter and rules for the time being, to make such a grant as they shall think fit to the incumbent of such benefice towards the cost of the repairs to which this section relates in lieu of making a Long Assessment or in order to reduce the payments due under a Long Assessment.

(3) The Central Authority shall send a copy of any assessment made under this section to the incumbent and sequestrator (if any) of the benefice concerned, and to the Board.

27.—(1) If it shall appear to the Central Authority, on the representation of the Board or otherwise, that, owing to— Variation of Ordinary or Long Assessment.

- (i) a substantial alteration in the extent or character or value of the buildings affected, or

- (ii) the granting or determination of any repairing lease, or
- (iii) the execution of any repairs, or
- (iv) the sale or purchase of buildings

since an Ordinary or Long Assessment shall have been made, or for any other good and sufficient reason, it may be necessary or desirable to vary such an assessment, the Central Authority shall direct the Board to obtain from the Surveyor a report showing whether any and if so what variation should be made in such assessment.

(2) The Surveyor shall thereupon report to the Board accordingly, and shall send a copy of his report to any person responsible for any payment under such assessment, or for the execution of any works, and any such person may state to the Board any objection to the report and the provisions of sections 20 and 21 in respect to objections and to the making of an order by the Board shall apply, and the Board may make such order as the case may require.

(3) If in the opinion of the Board no fresh inspection shall be necessary, the Board, after consulting any person responsible for any payment under such assessment, may make such order as the case may require.

(4) The Central Authority upon receipt of the copy of the order of the Board shall make an Amending Assessment varying the Ordinary or Long Assessment in question as in view of the order of the Board may be necessary.

(5) A copy of such Amending Assessment shall be sent by the Central Authority to any person responsible as aforesaid, and to the Board.

Provision in
case assess-
ment
cancelled.

28.—(1) The Central Authority may, after consultation with the Board, if they think fit, make an order cancelling any assessment, whether Ordinary or Long, made under this Measure.

(2) If an Ordinary Assessment be cancelled or if after eighteen months from the date on which the last annual payment under an Ordinary Assessment fell due the Central Authority by reason of the lack of buildings belonging to the benefice concerned for which such an assessment is in their opinion required, shall not have made a fresh Ordinary Assessment, then if at any subsequent time the Central Authority shall make an Ordinary

Assessment relating to that benefice such assessment shall in all respects thereafter operate as though it were the first Ordinary Assessment so relating.

29. The Repair Rate paid in respect of a benefice shall be placed by the Central Authority to the credit of an account to be called "the Ordinary Repair Account of the Benefice of.....," and they shall allow interest thereon at such rate and on such terms and conditions as they may from time to time determine, and credit the same to the account. All repairs in respect whereof a Repair Rate is made shall thenceforward be deemed to be ordinary repairs for the purposes of this Measure.

Ordinary
Repair
Account.

30. Any sums paid to or lent or granted by the Central Authority in respect of the structural repairs of the buildings of a benefice and not included in a Repair Rate shall be placed by the Central Authority to the credit of an account to be called "the Structural Repair Account of the Benefice of.....," and they shall allow interest thereon at such rate and on such terms and conditions as they may from time to time determine, and credit the same to the account.

Structural
Repair
Account.

31.—(1) It shall be the duty of an incumbent of a benefice not under sequestration to execute the repairs, including reinstatement of buildings destroyed by fire, required by any order of the Board in accordance with such order and with the provisions of this Measure and in particular within the time prescribed by the Board under those provisions.

Execution
of repairs.

(2) It shall also be the duty of the sequestrator of a benefice under sequestration to execute the repairs required by any order of the Board in like manner as aforesaid; and if the sequestration shall come to an end before the completion of the repairs, it shall be the duty of the incumbent to complete them.

(3) Provided always, that there shall be no obligation on the part of the sequestrator of a benefice under this section to execute any ordinary or structural repairs the cost of which exceeds the sums for the time being standing to the credit of the Ordinary Repair Account and of the Structural Repair Account of the benefice respectively; and the obligation of the incumbent to execute ordinary

or structural repairs shall in like manner not exceed such sums as aforesaid with the addition of such sums (if any) as may be due from the incumbent to the Central Authority, and payable to such accounts respectively.

(4) The sequestrator may, with the consent of the Board and upon terms approved by the Board, employ an architect or a surveyor to supervise the execution of any repairs which he is required to execute by an order of the Board under this section; and he shall be entitled to recover the charges of any such architect or surveyor and other necessary expenses incurred in connection with the execution of such repairs from the profits of the benefice.

(5)—(i) Any ordinary repairs included in a report on vacancy or sequestration on the buildings of a benefice protected by a certificate and not otherwise provided for under section 21 (3) of this Measure; and

(ii) any structural repairs which on a first inspection are included in the report of the surveyor under section 18 (1) (i) (b) as being repairs admitting of delay; and

(iii) all structural repairs included in the report on a subsequent inspection;

shall be executed by the incumbent or sequestrator under the order of the Board when and in so far as there shall be sufficient money standing to the credit of the Ordinary Repair Account and Structural Repair Account respectively of the benefice concerned, whether received from payments made under an assessment or from grants made by any body or person, or advanced by the Central Authority as a loan on the security of the revenues of the benefice.

(6) If the incumbent of a benefice who is required under this Measure to execute repairs shall refuse or neglect to execute them, the Board may represent his default to the Bishop, and thereupon the Bishop may, if he think fit, issue sequestration of the benefice; and it shall then be the duty of the sequestrator to execute the repairs as in this section provided.

(7) If when the Board has represented to the Bishop the default of an incumbent in respect to the execution of repairs the Bishop does not issue sequestration of the benefice, the Board may in its discretion execute such

repairs or so much of them as the Board may think fit, and shall have all necessary rights of entry for that purpose.

32.—(1) The sums standing to the credit of the Ordinary Repair Account and the Structural Repair Account respectively of a benefice shall be available for the appropriate repairs of the buildings belonging to the benefice, being repairs included in an order of the Board made under section 21 of this Measure.

Cost of
repairs.

(2) The Central Authority shall from time to time disburse from the Ordinary Repair and Structural Repair Accounts of a benefice the sums necessary to defray the cost of the repairs chargeable to those accounts respectively, upon the certificate of the Surveyor that the work in respect to which the sum is to be disbursed has been done to his satisfaction, every such certificate being countersigned by the incumbent of the benefice or by the sequestrator or by the Board, whichever shall have executed the repairs.

(3) When the repairs in respect to which disbursements are required have been completed, the Surveyor shall in giving his certificate so inform the Board and the Central Authority; and if such repairs shall have not been completed by reason of the insufficiency of the money available to complete them the Surveyor shall so inform the Board and the Central Authority, and shall certify to the Central Authority the total amount required in respect to the repairs, stating separately the amount required for work already done and the amount required for work still to be done in order to complete the repairs; and upon receipt of such certificate duly countersigned as aforesaid, the Central Authority may disburse the total amount required for the work which has been done.

(4) When by reason of the default of the incumbent the execution of the repairs of buildings belonging to a benefice shall have been done under the preceding section of this Measure by the sequestrator of the benefice or by the Board, the cost of the repairs and all expenses incurred by the sequestrator or Board in executing the repairs which may be certified by the Surveyor to the Central Authority as having been incurred by reason of such default, shall be paid out of the account chargeable with such repairs in priority to any claim that the incumbent

may have upon such account; and if there shall not be sufficient money standing to the credit of the account to defray expenses caused to the sequestrator or Board by the default of the incumbent, such expenses as certified by the surveyor shall be a debt due from the incumbent to the sequestrator or Board, as the case may be, and recoverable at law.

(5) Neither the Central Authority nor the Board shall incur any liability at law to any surveyor, builder, contractor, or other person, whether in respect of fees or expenses or the cost of repairs or other works or in any other respect whatsoever except the obligations imposed by the provisions of this Measure in respect to the disbursement and application of the moneys standing to the credit of the Ordinary Repair and Structural Repair Accounts, and in respect to the payment of the salaries or fees due to the surveyors by the terms of their appointment under section 12 of this Measure.

Disposal of
surplus
payments.

33.—(1) If after the requirements of this Measure in respect to the ordinary repairs or structural repairs of the buildings belonging to a benefice have been satisfied there shall remain any surplus to the credit of the Ordinary Repair Account or Structural Repair Account respectively of that benefice, such surplus shall be applied in one of the following ways or partly in one way and partly in another as the Central Authority may determine, that is to say—

- (i) it may be used to pay the interest or repay the principal of any loan or advance which has been made to the credit of the account; or
- (ii) it may be retained in the account and used to defray the cost of repairs which may subsequently become chargeable to the account; or
- (iii) if the incumbent or sequestrator of the benefice, or a former incumbent, or the executors or administrators of a former incumbent, shall apply in writing to the Central Authority to have repaid to the applicant so much of the surplus as, having regard to the contributions made by such incumbent or sequestrator or former incumbent, may, in the opinion of the Central Authority, be fairly repaid, the Central Authority shall repay such sum as they may

think fit to such applicant or applicants, and if there be more than one in due proportion between them.

(2) When there is a surplus available for repayment under the preceding subsection it shall be the duty of the Central Authority, so far as may reasonably be possible, to inform any person qualified to apply under the subsection, that such surplus is available.

34.—(1) All moneys paid under an Administration Rate or otherwise provided for that purpose in respect of a benefice shall be placed by the Central Authority to the credit of the Administration Account of the Board in whose area such benefice is situated. Administrative expenses.

(2) The administrative expenses of the Central Authority shall be divided rateably between the Administration Accounts of the different Boards in proportion to the number of the benefices in the area of each Board, and the proportionate share so calculated of such expenses for each Board shall be the first charge upon the Administration Account of that Board, but shall not be in excess of the sum received from the payments made towards the administrative expenses of the Central Authority by the Administration Rates payable under section 24 (2) (iii) and section 25 of this Measure.

(3) The surplus on each Administration Account of a Board after paying the due share of the expenses of the Central Authority shall be from time to time paid over to the Board, which shall use it to defray the administrative expenses of the Board under this Measure; and the Board shall at reasonable periods, when required by the Central Authority, furnish that Authority with properly audited accounts of such administrative expenses.

LOANS, INSURANCE AND ASSISTANCE.

35.—(1) If the cost of repairs chargeable to the Ordinary Repair Account of a benefice shall exceed the sum standing to the credit of that account, or if an order of the Board shall have required the execution of structural repairs the cost of which shall exceed the sum standing to the credit of the Structural Repair Account of the benefice, the Central Authority may in their discretion advance the cost of such repairs in whole or in part, by way of loan, the interest on and repayment of Loans by Central Authority to Repair Accounts.

which shall be a charge on the revenues of the benefice with such priority as is in this Measure prescribed; and such loan shall be repaid to the Central Authority in such number of years, not exceeding twenty-five, as the Central Authority with the consent of the Board shall decide.

(2) The Central Authority in deciding the term of any such advance shall have regard to the permanent or temporary nature of the repairs carried out, and may, if they think fit, with the consent of the Board, divide the advance and make different parts repayable within different periods. Any sum so advanced shall be paid to the Ordinary Repair Account or to the Structural Repair Account, as the case may be.

Interim
repairs
and loans.

36.—(1) If at any time during a quinquennial period the Board shall, after obtaining a report from the Surveyor, be of opinion that repairs to the buildings of a benefice are required without delay in order to prevent further dilapidations, and if the estimated cost of such repairs can be defrayed under the provisions of this section or otherwise, the Board may order such repairs to be executed, and the provisions of section 31 shall apply, subject to the provisions of this section in respect to defraying the cost.

(2) For the purpose of defraying the cost of repairs required to be executed under this section the sums standing to the credit of the Ordinary Repair Account of the benefice shall be available so far as in the opinion of the Central Authority the repairs to be effected are repairs chargeable to that account, and the sums standing to the credit of the Structural Repair Account shall be available so far as in the opinion of the Central Authority the repairs to be effected are structural repairs, and shall be disbursed in accordance with section 32 of this Measure; and if the amounts standing to the credit of these accounts or either of them shall in the opinion of the Central Authority be insufficient, the Central Authority may, if they think fit, advance the balance by way of loan secured on the revenues of the benefice and paid into the Ordinary or Structural Account of the benefice as the case may require.

(3) If at any time during a quinquennial period the Board (or, where there is no Board, the Rural Dean) shall certify to the Central Authority that it is expedient to

disburse in respect to any benefice a sum not exceeding in any one year ten pounds, and the Central Authority shall in their discretion decide that such disbursement is expedient, they may disburse such sum accordingly without satisfying any other condition or receiving any other authorisation.

37. The moneys advanced by the Central Authority under this Measure may at the discretion of the Central Authority be made repayable by annual instalments with interest on the principal money or by a fixed sum or sums payable yearly in the form of a terminable annuity, but the rate of interest to be charged in all computations shall not exceed one-half per centum over the interest obtainable upon Consols, such interest being calculated according to the mean market price on the day last preceding the date of the charging Assessment on which market quotations were published. Repayment of advances.

38.—(1) Every advance which the Central Authority are by this Measure authorised to make on the security of the revenues of a benefice shall be charged by an order of the Central Authority (in this Measure called “a Charging Assessment”), which shall be in such form as the Central Authority may from time to time prescribe, and shall set forth— Charging the revenues of a benefice.

- (i) the sum advanced;
- (ii) the number of years for which the advance is made; and
- (iii) whether the advance and the interest (if any) thereon is repayable by way of fixed annual sum in the form of a terminable annuity or otherwise;

and the provisions of the Acts contained in the First Schedule hereto and of the Acts referring to or amending the same, and of sections one and two of the Ecclesiastical Dilapidations Act, 1872, with respect to the recovery of principal and interest due under mortgages, and to the apportioning of payments in the case of death or avoidance, and to stamps and to the priority of sequestrations except as otherwise by this Measure provided, shall apply to Charging Assessments made under this Measure as if the said provisions had mutatis mutandis been repeated herein, and the provisions and authorities of the said Acts shall be exercisable either separately or concurrently

with the provisions of this Measure, and the incumbent or sequestrator shall when required furnish to the Central Authority and verify as they may direct a full statement of the revenues of the benefice.

(2) Section four of the Loans (Incumbents of Benefices) Amendment Act, 1918, shall apply to a charge imposed on the revenues of a benefice in favour of the Central Authority under the provisions of this Measure as if it were a charge coming within the provisions of that section.

(3) The charge on a benefice under sequestration in respect to the stipend assigned to any clerk appointed to perform the duties attaching to the benefice and any other charge which at the passing of this Measure can be imposed according to law shall have priority of all charges imposed by this Measure.

(4) The charges on the revenues of a benefice imposed by this Measure shall have effect in the following order of priority—

First, any charge made in respect of an advance to an incumbent by the Central Authority under this Measure;

Secondly, any other charge on a benefice made under this Measure in order of its date.

(5) Any money which has arisen or may arise from the sale of any messuage, building or land belonging to or held in trust for a benefice, and repaired either wholly or in part by means of money lent by the Central Authority under this Measure may, with the consent of the Central Authority, be applied in discharge of any principal sum charged on the benefice or any of the possessions thereof in respect of the money so lent.

Insurance.

39. The Insurance Rate paid in respect of a benefice shall be placed by the Central Authority to the credit of an account to be called "The Insurance Account of the Benefice of.....," and shall be employed by the Central Authority in insuring in their own names against loss or damage by fire the buildings in respect of which the same was paid in such Insurance Office of repute as may be selected by the Board, or in default of selection by the Board as the Central Authority may select.

**Insurance
moneys if
buildings**

40.—(1) If after the first annual payment of the Insurance Rate has been made, as required by an Ordinary

Assessment upon a benefice under this Measure, any building to which such Assessment relates shall be destroyed or damaged by fire, and if the Insurance Office in which the building is insured shall elect to pay the money for which the building is insured instead of causing the building to be reinstated at the expense of the office, the Central Authority shall apply the insurance money to the reinstatement of the building with such alterations (if any) as the Board with the consent of the Central Authority and of the incumbent (if any) may determine. destroyed by fire.

(2) The Board may prescribe regulations with the consent of the Central Authority for executing the works necessary for any such reinstatement and for providing for the preparation, with the approval of the incumbent, of plans for rebuilding and for the remuneration of the surveyor or any architect employed and for authorising the necessary disbursements by the Central Authority and otherwise generally for the proper execution of such reinstatement.

(3) If the Insurance money shall be insufficient for such reinstatement, the Central Authority may advance any balance on the security of the revenues of the benefice for such time as they think fit. If there shall be any surplus of the insurance money, the same shall be applied by the Central Authority as money in their hands appropriated for the augmentation of the benefice.

(4) If before the first annual payment as aforesaid has been made any building belonging to a benefice shall be destroyed or damaged by fire, and such building shall not have been insured for an amount sufficient to reinstate the same, the Surveyor shall report to the Board the damage done and the excess of the cost of reinstating the building above any money due under any insurance of the building which may have been made, and such excess shall be deemed to be a debt due from the incumbent to the Central Authority under section 19 of this Measure as though it were the cost of a wilful dilapidation, and shall be recoverable at law.

41. In respect to such benefices as are eligible under the regulations for the time being of the Central Authority to receive grants for augmentation from that authority, it shall be lawful for that authority to make grants for the assistance of the incumbents of such Grants by Central Authority.

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benefices in respect of any charges imposed upon them under this Measure. Such grants may be made in such a manner and subject to such conditions as the Central Authority shall think fit and either to meet a gift from other sources, or otherwise as the Central Authority may determine.

Loans by
Central
Authority
to the
Boards.

42. It shall be lawful for a Board to borrow and for the Central Authority to make such advances by way of loan as they may think necessary, and on such terms and conditions as they shall from time to time determine for the Board's administrative expenses, but the interest on such loans shall in no case exceed one-half per centum over the interest obtainable upon Consols, such interest being calculated according to the mean market price on the day last preceding the date of the loan on which market quotations were published.

Withholding
and transfer
of certain
payments.

43.—(1) If there be any sum payable by the Central Authority to an incumbent of a benefice from whom money is due in respect to any payment required by an assessment under this Measure, the Central Authority may retain such sum or so much of it as they think fit (not being more than is due from the incumbent), and in that case the money so retained shall be reckoned in reduction of the payment due from the incumbent.

(2) The Ecclesiastical Commissioners out of any money payable by them to the incumbent of any benefice may, if they think fit, pay to the Central Authority any sum due from such incumbent to the Central Authority under this Measure.

(3) Where a retired incumbent is liable under this Measure for any sum in respect of dilapidations and is entitled to a pension payable out of the revenues of the benefice concerned, the incumbent or sequestrator for the time being shall, if required so to do by the Central Authority, pay such sum to the Central Authority out of such pension, provided that such payment shall not exceed in any one year one-half the amount of the pension without the consent of the Bishop.

Grants by
Ecclesi-
astical Com-
missioners.

44. The Ecclesiastical Commissioners may out of revenues carried to their Common Fund under section sixty-seven of the Ecclesiastical Commissioners Act, 1840, or out of funds and property from which such revenues are derived pay to the Central Authority such sums not

exceeding in the whole five hundred thousand pounds at such times as the said Commissioners shall think fit, and such sums shall be applied by the Central Authority in accordance with a scheme to be prepared by that authority and approved by the said Commissioners to or towards defraying the cost of repairs ordered to be done upon first inspections under this Measure of the buildings of benefices in cases where such assistance is most required.

45.—(1) Where an incumbent of a benefice is the minister of a parish as defined in the Constitution of the National Assembly of the Church of England, a copy of any order relating to such benefice made under section 21 of this Measure and of the report of the Surveyor on which such order was founded (or instead of a copy, a summary of the purport of such order and report), and a copy of every assessment (whether Ordinary or Long) made by the Central Authority in respect of such benefice, shall be sent by the Diocesan Dilapidations Board to the Parochial Church Council (or churchwardens where there is no Council) of such parish and to the Board of Finance of the Diocese (unless the Diocesan Dilapidations Board be identical with the Board of Finance) or to such other diocesan body as in the opinion of the Bishop may be appropriate; and the Diocesan Dilapidations Board shall enquire of such Council (or churchwardens), and of such body respectively, whether they or either of them will pay or promise to pay any money in discharge or reduction of the liabilities imposed by any order of the Board or assessment by the Central Authority of which a copy or summary has been sent to them as is in this section required.

Invitation
to Boards
of Finance
and
Parochial
Church
Councils.

(2) If the Council (or churchwardens) or Board of Finance or any other body or person shall pay any money (whether out of funds at their disposal or obtained by collection from the voluntary contributions of other persons) to the Central Authority in discharge or reduction of the liabilities imposed by an order of the Board, or assessments by the Central Authority, the Central Authority may receive such payments and reckon them as if received from the person responsible for such liabilities; and if the Council (or churchwardens) or Board of Finance aforesaid or any other body or person shall promise in writing to pay money in discharge of

such liabilities or of so much of them as may be still outstanding, the Central Authority may, if they think fit, with the consent of the Diocesan Dilapidations Board, postpone the operation of all remedies against the person immediately responsible for such liabilities, for a period of not exceeding twelve months, but without prejudice to such remedies after the period of postponement shall have elapsed, if the liabilities shall have not then been fully discharged.

REMOVALS AND ADDITIONS.

Superfluous
buildings.

46.—(1) If a Surveyor, when he is making a report under this Measure, shall be of opinion that any building belonging to a benefice is superfluous, he shall report to the Board accordingly; and an incumbent may represent to the Board that any building belonging to his benefice is superfluous; and after receiving any such report or representation, the Board may in its discretion, with the consent of the patron and incumbent, order the removal of such building and the sale of its materials.

(2) Any surplus proceeds of such removal (after all expenses have been paid) shall be paid to the Central Authority, who shall apply the same, in accordance with the provisions of section 47 of this Measure.

(3) Provided always that if in the opinion of the Surveyor the cost of the removal of a superfluous building shall be more than can be obtained by the sale of materials removed, the Board may, in its discretion (notwithstanding any previous order), make an order deferring such removal; but provided also that as from the date of such order the incumbent (subject as hereinafter provided) shall not be responsible for the maintenance of the building, nor shall it thereafter be included by a Surveyor in any dilapidation report.

(4) If after making any such last-mentioned order it shall appear to the Board that the building to which the order relates is, or is likely to become, in a dangerous condition, or if for any other reason the Board shall decide that the removal of such building is desirable, the Board, notwithstanding any previous order, may make such order either for the removal or the repair of the building as the circumstances may require.

(5) Any order made under this section may from time to time be revoked or varied by the Board as in its discretion it thinks fit; and a copy of any order for the removal or repair of any building, or for the revocation or varying of any previous order, shall be sent to the incumbent and the patron of the benefice and to the Central Authority, and (in case of sequestration) to the sequestrator.

(6) The cost of removing a superfluous building, in so far as it shall exceed the proceeds (if any) of its removal and the cost of putting any such building into a safe condition, shall (unless otherwise provided by the Board or the Central Authority) be advanced by the Central Authority as a charge on the revenues of the benefice in the manner provided by section 38 of this Measure, and with such priority in respect to other charges as is in this Measure prescribed.

47. If any buildings belonging to a benefice shall by sale or removal with the proper sanctions cease to belong to the benefice, and there shall remain any sum standing to the credit either of the Ordinary Repair Account or the Structural Repair Account of the benefice in respect of those buildings, it shall be lawful for the Central Authority with the consent of the Board to apply such sum (or any part thereof) at their discretion for any one or more of the following purposes—

Proceeds of buildings sold or removed.

- (i) the improvement of any buildings belonging to the benefice;
- (ii) the augmentation of the benefice;
- (iii) the discharge of any charge made on the revenues of the benefice by a Charging Assessment under this Measure or the payment of the interest on such charge;
- (iv) the repayment of the sum to the incumbent (or his executors or administrators) or the sequestrator by whom such sum shall have been contributed as required by this Measure.

48.—(1) It shall not be lawful for an incumbent to make any additions to or alterations of the buildings belonging to a benefice without the sanction of the Board and the consent in writing of the patron, and if an incumbent shall make any such additions or alterations without

Additions.

such sanction as aforesaid it shall be lawful for the Board to order him (and notwithstanding that he may in the meantime have ceased to be the incumbent of such benefice) or his executors or administrators, to restore the buildings to the condition in which they were before such additions or alterations were made, and he, or his executors or administrators, shall upon receipt of such order, or a copy thereof, forthwith at the expense of himself or his estate restore the buildings mentioned therein as thereby directed.

(2) If such person (being incumbent, or former incumbent) or his executors or administrators, shall refuse or neglect to execute such restoration as required by the order of the Board, it shall be lawful for the Central Authority, if in their discretion they shall think it desirable so to do, to make such arrangements as they shall think proper for the execution of such restoration as so required, and the cost of such restoration shall be a debt due from such person, or his executors or administrators, to the Central Authority, and shall be recoverable as such at law.

(3) A copy of any order under this section shall be sent by the Board to the Central Authority.

MISCELLANEOUS.

Fixtures.

49.—(1) The Surveyor, if at any time so required by the Board, shall make to the Board a report upon the fixtures and things belonging to a benefice which are in or about any buildings belonging to the benefice; and such report shall include a complete schedule or inventory of all such fixtures and things.

(2) On the receipt of the report by the Board a copy of it shall be forthwith sent to the person who is incumbent of the benefice at the date of such receipt, or to his executors or administrators, or, if the benefice be vacant at that date, to the preceding incumbent or his executors or administrators; and any person to whom the report is accordingly sent may state in writing to the Board any objection to the report on any ground of fact or law in regard to the ownership of the aforesaid fixtures and things or any of them.

(3) The Board after due consideration of all such objections shall transmit the report of the Surveyor to

the Central Authority with such conclusions concurring with or varying from such report as the Board may think fit, and the Central Authority may thereupon make an order confirming the conclusions of the Board with such variation, if any, as the Central Authority may determine, and such order shall decide every question involved and shall be binding on the incumbent of the benefice and any other person concerned in respect to the ownership of the fixtures and things subject only to such appeal as is in this section provided.

(4) Any person aggrieved by an order of the Central Authority under this section may appeal to the County Court having jurisdiction over the place where the buildings concerned are, on any ground of fact or law relating to the ownership of the fixtures and things aforesaid: and from the County Court a further appeal shall lie to the High Court of Justice. Every appeal under this section shall be made and pursued in accordance with rules which shall be framed by the Lord Chancellor after consultation with the Central Authority.

(5) The cost of defending any such appeal by the Board, and all expenses incurred by the Board in connection with such appeals, may be defrayed by the Board as administrative expenses out of the moneys applicable for such expenses.

50.—(1) The provisions contained in this Measure in regard to buildings standing on the lands belonging to any benefice shall not be applicable to the buildings (if any) belonging to the benefice, which shall be comprised in any lease for years or lives entered into by an incumbent in such a form that it is binding on his successor for so long as such lease shall be subsisting, except so far as the lessee shall not, by virtue of such lease, be liable to insure, rebuild or repair such buildings; but it shall be lawful for the Surveyor upon any inspection made by him under the provisions of this Measure to inspect the buildings comprised in any such lease, and he shall so inspect them and report to the Board if so instructed by the Board or requested by the incumbent. Leases of glebe.

(2) If it shall appear from such report that the repairs for which the lessee is responsible have not been but ought for the purposes of this Measure to be carried out, then it shall be lawful for the Board, if it thinks

steps should be taken for enforcing the lessee's covenants in that behalf, to send a copy of such report to the incumbent, and to require him forthwith to take all necessary steps for enforcing the said covenants.

(3) If the incumbent shall refuse or in the opinion of the Board wilfully neglect or delay to take such necessary steps or to prosecute the same, the Board may report the whole matter to the Central Authority, and the Central Authority may, if they think fit, in the name and on behalf of the incumbent, take or continue all necessary proceedings for enforcing the said covenants, and shall be deemed for this purpose to be the duly authorised attorneys of the incumbent, who shall leave the conduct of such proceedings in their hands, and shall keep them indemnified against all costs and expenses incurred as such attorneys, and their authority in this respect shall not be revoked by the death of the incumbent or otherwise, but shall continue for all purposes connected with the enforcement of the said covenants until the matter has in the opinion of the Central Authority been brought to a termination, and any sums due by way of indemnity as aforesaid shall be a debt due from the incumbent or his estate to the Central Authority, and shall be recoverable at law.

Timber on
glebe.

51.—(1) The timber growing on the glebe land of a benefice shall not be felled without the previous consent in writing of the Board, and then only for the purpose of being actually applied in repairs to the buildings of the benefice : Provided that where it appears to the Board that the timber ought, as a matter of good management, to be felled, the Board may direct the incumbent to fell the same, and on his default may cause the same to be felled, and shall have all necessary rights of entry for that purpose.

(2) The consent of the patron or ordinary shall not be necessary for any felling in accordance with the provisions of this section.

(3) If an incumbent shall cause or permit timber belonging to his benefice to be felled otherwise than as in this section provided, such felling shall be deemed to be a wilful dilapidation within the meaning of section 19 of this Measure, and the provisions of that section shall apply with the substitution of the value of the timber as

estimated by the Central Authority for the cost of making good a wilful dilapidation; and any moneys received or recovered in respect of such estimated value shall be paid to the Central Authority.

(4) Any timber felled in accordance with the provisions of this section so far as not actually applied in repairs to the buildings of a benefice shall be sold by the incumbent or the Board (as the case may be), and after payment of the costs and expenses of the felling and sale, the balance shall be paid to the Central Authority and be carried to the credit of the benefice, and at the discretion of the Central Authority, with the approval of the Board, shall be

- (i) used towards defraying the cost of replanting timber belonging to the benefice; or
- (ii) paid to the credit of the Ordinary or Structural Repair Account of the benefice; or
- (iii) appropriated for the augmentation of the benefice.

(5) This section shall apply to timber growing in the churchyard in the same manner as to timber growing on the glebe lands, save that

- (i) in subsection (1) repairs to the whole church or any part thereof shall be substituted for repairs to the buildings of the benefice;
- (ii) all moneys recoverable from any incumbent under subsection (3) or directed to be paid to the Central Authority under subsection (4) shall in like manner be recoverable by and paid to the Diocesan Authority in substitution for the Central Authority; and
- (iii) any moneys recovered or received by a Diocesan Authority under this section shall be applied by such Authority in payment of any charges lawfully incurred for the repair of the Church of the Parish to which the churchyard belongs.

(6) Nothing herein contained shall prejudice or affect section sixty-seven of the Act 42 Geo. III., cap. 116, or the powers given by the Act 56 Geo. III., cap. 52, of applying moneys arising from the sale of timber in the exchange or purchase of land.

Chancels.

52.—(1) As from the passing of this Measure there shall be no obligation on any incumbent to repair or insure the chancel of the church of the parish of which he is incumbent, if he be an incumbent who by reason only of his incumbency is rector of such parish or otherwise solely liable for such repair or insurance, and such chancel shall in all respects be repairable and insurable in the same manner as the remainder of such church.

(2) Any person other than such an incumbent as aforesaid who is liable as rector or otherwise for the repair of the chancel of a church may after consultation with the Parochial Church Council (if any) of the parish concerned and with the approval of the Board compound such liability by payment to the Diocesan Authority of such a sum as having regard to the condition of the chancel the Diocesan Authority may estimate as reasonably sufficient to provide for the cost of future repairs for which such person would otherwise have been liable.

(3) Provided that if the Parochial Church Council or the Board shall so require, the question of the sum to be paid in respect of such liability or any other relevant question shall be referred by the Diocesan Authority to the Central Authority, who shall thereupon decide such question and make such order relating thereto as in their discretion may be necessary.

(4) Upon payment of the sum so determined and of all the expenses incurred by the Diocesan and Central Authority in making the estimate and otherwise in respect to the compounding, the Diocesan Authority shall give to the person compounding a receipt acknowledging such payment, and as from the giving of such receipt all liability of such person or of his estate shall cease, and the chancel shall thenceforward be repairable in the same manner as the remainder of the church.

(5) Any sum paid in compounding a liability for repairs under this section shall be invested and held on behalf of the Parochial Church Council of the parish concerned by the Diocesan Authority in any investment permitted by law for the investment of trust funds, and the yearly income arising therefrom shall be applied by the Diocesan Authority after consultation with the Parochial Church Council—

(i) in keeping the chancel, in respect to which the liabilities have been compounded, insured against

- loss or damage by fire, in such an amount as the Diocesan Authority shall decide to be sufficient; or
- (ii) in the payment of any charges lawfully incurred in the maintenance and repair of the Church, of which the chancel aforesaid forms part, or of the churchyard belonging to such church; or
 - (iii) in accumulating any residue of the said income not applied as aforesaid in any year so as to form a fund for the extraordinary repair, improvement or enlargement of the church or churchyard aforesaid:

Provided that the Diocesan Authority may at its discretion at any time apply such accumulations or any part thereof as if the same were income.

(6) When an incumbent is by reason only of his incumbency a person compounding a liability under this section, the sum contributed by such incumbent may be advanced by the Central Authority by way of charge on the revenues of the benefice of the incumbent repayable in such number of years as the Central Authority shall determine.

REPEAL.

53.—(1) Save as herein provided the Acts specified Repeal. in the Second Schedule hereto shall to the extent therein mentioned but without prejudice to any mortgage or charging order in force be repealed, except that as regards the buildings of a benefice in respect to which a survey shall have been ordered prior to the passing of this Measure and in respect to which no certificate shall then have been registered under sections forty-six or fifty of the Ecclesiastical Dilapidations Act, 1871, such repeal shall only take effect from such time as a certificate under one or other of such sections shall be registered.

(2) In the event of a survey becoming, in the opinion of the Bishop, urgently necessary in respect of the buildings of a benefice prior to the coming into effect in respect of the area in which such benefice is situate of a scheme under sections 9 or 10 of this Measure, or before the expiration of six calendar months from the passing of this Measure (whichever is the shorter period), the Bishop may order a survey, and in such case the survey

SCHEDULES.

FIRST SCHEDULE.

17 Geo. III., c. 53; 21 Geo. III., c. 66; 7 Geo. IV., c. 66;
1 and 2 Vict., c. 23; 28 and 29 Vict., c. 69.

SECOND SCHEDULE.

Ecclesiastical Dilapidations Act, 1871, the whole Act except sections 25, 26, 27, 28.

Ecclesiastical Dilapidations Act, 1872, section 3.

Incumbents' Resignation Act, 1871 (Amendment) Act, 1887, section 6.

Ecclesiastical Leasing Act, 1842, section 19 (so far as regards incumbents of benefices).

THIRD SCHEDULE.

1 & 2 Vict., c. 106, ss. 126, 127, 128.

126. In any case in which the consent of the patron of any benefice shall be required to the exercise of any power given by this Act, or in which any notice shall be required by this Act to be given to the patron of any benefice, and the patronage of such benefice shall be in the Crown, the consent of the Crown to the exercise of such power shall be testified and such notice shall be given respectively in the manner hereinafter mentioned (that is to say) if such benefice shall be above the yearly value of twenty pounds in the Queen's Books, the instrument by which the power shall be exercised shall be executed by and any such notice shall be given to the Lord High Treasurer or First Lord Commissioner of the Treasury for the time being; and if such benefice shall not exceed the yearly value of twenty pounds in the Queen's Books, such instrument shall be executed by and any such notice shall be given to the Lord High Chancellor, Lord Keeper or Lords Commissioners of the Great Seal, for the time being; and if such benefice shall be within the patronage of the Crown in right of the Duchy of Lancaster, such instrument shall be executed by and any such notice shall be

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Measure, 1923.

given to the Chancellor of the said Duchy for the time being; and the execution of such instrument by and any such notice given to such person or persons shall be deemed and taken for the purposes of this Act to be an execution by and a sufficient notice to the patron of the benefice.

127. In any case in which the consent of the patron of any benefice shall be required to the exercise of any power given by this Act, and the patron of such benefice shall be a minor, idiot, lunatic or feme covert, it shall be lawful for the guardian or guardians, committee or committees, or husband of such patron (but in case of a feme covert with her consent in writing) to execute the instrument by which such power shall be exercised in testimony of the consent of such patron; and such execution shall for the purposes of this Act be deemed and taken to be an execution by the patron of the benefice.

128. In any case in which the consent of the patron of any benefice shall be required to the exercise of any power given by this Act or in which any notice shall be required by this Act to be given to the patron of any benefice, and the advowson and right of patronage of such benefice shall be part of the possession of the Duchy of Cornwall, the consent of the patron of such benefice to the exercise of such power shall be testified and such notice shall be given respectively in the manner hereinafter mentioned (that is to say) the instrument by which the power shall be exercised shall be executed by and any such notice shall be given to the Duke of Cornwall for the time being, if of full age, but if such benefice shall be within the patronage of the Crown in right of the Duchy of Cornwall, such instrument shall be executed by and any such notice shall be given to the same person or persons who is or are by this Act authorised to testify the consent of the Crown to the exercise of any power given by this Act in respect of any benefice in the patronage of the Crown; and the execution of such instrument by and any such notice given to such person or persons shall be deemed and taken for the purposes of this Act to be an execution by and a sufficient notice to the patron of the benefice.

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